

ZACHARIA BROWN & BRATKOVICH

26811 South Bay Drive, Suite 270

Bonita Springs, FL 34134

Phone: (239) 345-4545

Dear Sir or Madam:

We are helping you apply for Florida Medicaid benefits. To do this, we need to gather financial records on your behalf. The attached forms give us permission to request these records for your application.

What These Forms Do: These forms allow us to *request copies of documents* from your banks, investment companies, life insurance companies, and sources of income (like Social Security or pensions). We will then provide these documents directly to the Florida Department of Children and Families for your Medicaid application.

What These Forms Do NOT Do: These forms do not give us any authority to access your accounts, move your money, or take any action with your finances. We can only *obtain paperwork*—nothing more.

What You Need To Do:

1. Please sign your name **four (4) times** where you see the red "X" marks on the attached pages. After signing, return all pages to our office.
2. Please identify any and all bank accounts, investment accounts and life insurance that you are aware of on the top of the second page where indicated..

If you have any questions or concerns at all, please call us directly at **(239) 345-4545**. We are happy to explain anything and want you to feel comfortable with these forms before signing.

Sincerely,

Zacharia Brown & Bratkovich

AUTHORIZATION FOR REPRESENTATION AND RELEASE OF FINANCIAL INFORMATION

Florida Medicaid Application – Institutional Care Program (ICP)

ACCOUNT OWNER / APPLICANT INFORMATION - Medicaid Case No

Name:	Date of Birth:
Address:	SSN:
City/State/Zip:	Phone:

AUTHORIZED REPRESENTATIVE / ATTORNEY

Name: Carl B. Zacharia, Esq.	Fla Bar No.: 50784
Firm: Zacharia Brown & Bratkovich	Phone: (239) 345-4545
Address: 26811 South Bay Drive, Ste. 270 Bonita Springs, FL 34134	Email: czacharia@zacbrownlaw.com

SECTION 1: DESIGNATION OF REPRESENTATIVE FOR DCF

I hereby designate the above-named Attorney as my Authorized Representative to act on my behalf in all matters relating to my Florida Medicaid application with the Department of Children and Families (DCF). This authorization includes but is not limited to: receiving all correspondence and notices; providing information and documentation; attending meetings and hearings; and communicating with DCF on my behalf regarding my eligibility for Medicaid benefits.

SECTION 2: AUTHORIZATION TO EXECUTE DCF FORMS

I hereby grant the above-named Attorney a limited power of attorney to execute on my behalf the following Florida DCF forms and any successor or substantially similar forms required for my Medicaid application:

- CF-ES 2505 – Appointment of Designated Representative
- CF-ES 2514 – Authorization to Disclose Information
- CF-ES 2613 – Financial Information Release
- Any additional authorization or release forms required by DCF for Medicaid eligibility determination

SECTION 3: RELEASE OF FINANCIAL INFORMATION

I hereby authorize and direct any bank, credit union, savings institution, brokerage firm, investment company, insurance company, annuity provider, pension administrator, retirement plan custodian, employer, government agency, or other financial institution holding any account, policy, or benefit in my name or in which I have an interest, to provide the above-named Attorney or their authorized agents with complete information regarding:

- Account statements, balances, and transaction histories
- Insurance policies, cash values, and beneficiary designations
- Retirement accounts, pensions, and annuity values
- Income, dividends, and interest payments
- Any other financial information necessary for the Medicaid application

List Known Bank Accounts / Life insurance /Investment Accounts:

<u>Institution</u>	<u>Account No.</u>
_____	_____
_____	_____
_____	_____
_____	_____

This authorization is valid for records from the past sixty (60) months and for twelve (12) months following the date of signature. A photocopy or electronic copy of this authorization shall be as valid as the original. This authorization complies with HIPAA, the Gramm-Leach-Bliley Act, and Florida law regarding release of financial information.

SECTION 4: INDEMNIFICATION

The undersigned authorized representative/attorney, an attorney licensed in the State of Florida, hereby agrees to indemnify, defend, and hold harmless any financial institution, insurance company, employer, government agency, or other entity that provides information in good-faith reliance upon this authorization from any and all claims, demands, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or related to the release of such information. This indemnification shall survive the expiration or revocation of this authorization.

SIGNATURES

Account Owner / Applicant

X

Signature

Date

If signed by agent under Power of Attorney: I am signing as agent under a valid Power of Attorney dated _____ and represent that I have authority to execute this authorization.

Agent Signature

Date

Authorized Representative / Attorney

Signature

Date

Notice to Financial Institutions: This authorization permits release of the above-described information to the named Attorney for purposes of a Florida Medicaid application. Please direct any questions to the Attorney at the contact information provided above. Thank you for your prompt attention to this request.



APPOINTMENT OF A DESIGNATED REPRESENTATIVE

Case Number _____

Customer's Name _____

Completed by Customer

I would like for _____ to act on my behalf in determining my
Name of Representative
eligibility for public assistance from the Department of Children and Families.

X

Signature of Customer _____

_____ Date

Completed by Representative

I understand that by accepting this appointment, I am responsible to provide or assist in providing information needed to establish this person's eligibility for assistance. I understand that I may be prosecuted for perjury and/or fraud if I withhold information or intentionally provide false information.

Signature of Representative _____

_____ Date

Relationship to Customer _____

Street Address _____

City _____

State _____

Phone Number _____

Self-Appointment by Representative

I am acting for _____ in providing information to establish eligibility for assistance because he/she is unable to act on his/her own behalf. I will provide information to the best of my knowledge. I understand that if I withhold information or if I intentionally provide false information, I may be prosecuted for perjury and/or fraud. I agree to immediately report any change in their situation of which I become aware.

Signature of Representative _____

_____ Date

Relationship to Customer _____

Street Address _____

City _____

State _____

Phone Number _____



AUTHORIZATION TO DISCLOSE INFORMATION

Whose Records are to be Disclosed (<u>print</u> name):			SSN: _____		
First _____	Middle _____	Last _____	Date of Birth: _____ Month Day Year		

I voluntarily authorize and request disclosure (including paper, oral, and electronic interchange) of all my medical records, education records, and other information related to my ability to perform tasks.

This includes specific permission to release:

- All records and other information regarding my treatment, hospitalization, and outpatient care for my impairment(s), including but not limited to:
 - Psychological, psychiatric or other mental impairment(s) (excludes psychotherapy notes as defined in 45 CFR 164.501).
 - Drug abuse, alcoholism, or other substance abuse.
 - Sickle cell anemia.
 - Gene-related impairments, including genetic test results.
- Records which may indicate the presence of communicable or venereal disease which may include, but are not limited to, diseases such as hepatitis, syphilis, gonorrhea, and the human immunodeficiency virus also known as Acquired Immune Deficiency Syndrome (AIDS) and tests for HIV.
- Information about how my impairment(s) affects my ability to complete tasks and activities of daily living, and my ability to work.
- Information created within 12 months after the date this authorization is signed, as well as any and all past information.

This authorization allows for release of information FROM:

- All medical sources (hospitals, clinic, labs, physicians, psychologists, etc.) including mental health, correctional, addiction treatment, and VA health care facilities.
- All educational sources (schools, teachers, records administrators, counselors, etc.).
- Social workers/rehabilitation counselors.
- Consulting examiners used by DCF or DDD.
- Employers.
- Others who may know about my condition (family, neighbors, friends, public officials).

This authorization allows for release of information TO:

- The Department of Children and Families,
- The Division of Disability Determinations, including contract copy services and doctors, and
- Other professionals consulted during the disability evaluation process.

The **PURPOSE** of this authorization is to obtain information that may be used to determine my eligibility for benefits, including looking at the combined effect of any impairments that by themselves would not meet the SSA definition of disability used by DCF.

EXPLANATION OF CF-ES Form 2514: We need your written authorization to help get the information required to process your Medicaid application. Laws and regulations require that sources of personal information have a signed authorization before releasing it to us. Also, laws require specific authorization for the release of information about certain conditions and from educational sources. You can provide this authorization by signing a form CF-ES 2514. Federal law permits sources with information about you to release that information if you sign a single authorization to release all your information from all your possible sources. We will make copies of it for each source. A covered entity (that is, a source of medical information about you) may not condition treatment, payment, enrollment, or eligibility for benefits on whether you sign this authorization form. A few States, and some individual sources of information, require that the authorization specifically name the source that you authorize to release personal information. In those cases, we may ask you to sign one authorization for each source and we may contact you again if we need you to sign more authorizations.

IMPORTANT INFORMATION ABOUT PRIVACY: Personal information collected by DCF or DDD is protected by Privacy Act of 1974 and the Health Insurance Portability and Accountability Act of 1996 (HIPAA). DCF maintains records in accordance with policies contained in CFOP 15-4.

SIGNING THIS FORM IS VOLUNTARY, but failing to sign or revoking it before we receive necessary information could prevent an accurate or timely decision on your Medicaid application, and could result in a denial or loss of benefits. Although the information we obtain with this form is almost never used for any purpose other than those stated above, the information may be disclosed by DCF without your consent if authorized by Federal Laws such as the Privacy Act. For example, DCF may disclose information:

- To enable a third party (e.g., consulting physician) or other government agency to help DCF establish rights to disability benefits and/or coverage.
- Pursuant to law authorizing the release of information from DCF records (e.g., to the Inspector General, Federal or State benefit agencies or auditors, or the Department of Veterans Affairs).
- For statistical research and audit activities necessary to ensure the integrity and improvement of DCF programs.

DCF will not redisclose information without proper prior written consent, information relating to alcohol and/or drug abuse as covered in 42 CFR part 2, or from educational records for a minor obtained under 34 CFR part 99 (FERPA), or local government agencies. Many agencies may use matching programs to find or prove that a person qualifies for benefits paid by the Federal government. The law allows us to do this even if you do not agree to it. Explanations about possible reasons why information you provide us may be used or given out are available upon request from any DCF office.

This authorization **EXPIRES 12 months from the date it is signed (date below my signature).**

- I authorize the use of a copy (including electronic copy) of this form for the disclosure of the information described above.
- I understand that there are some circumstances in which this information may be redisclosed to other parties (see details above).
- I may write to DCF and my sources to revoke this authorization at any time. I understand that information collected prior to the revocation will be used to determine if I am disabled.
- DCF will give me a copy of this form if I ask. I may ask the source to allow me to inspect or get a copy of material to be disclosed.
- I have read this form in its entirety and agree to the disclosures above from the types of sources listed.

Please sign using blue or black ink.		If not signed by subject of disclosure, specify basis for authority to sign: ☐ Parent of minor ☐ Guardian ☐ Power of Attorney ☐ Other (specify):	
SIGN ► X			
Date Signed:	Street Address:		
Phone Number (with area code)		City	State Zip Code
WITNESSES: <i>I know the person signing this form or am satisfied of this person's identity (REQUIRED IF individual signed above with an "X").</i>			
SIGN ►		SIGN ►	
Witness Phone Number or Address		Witness Phone Number or Address	
FOR DCF/DDD Office Use ONLY: Include additional information below as needed to help identify the subject (other names used), a specific source, or material to be disclosed.			
This general and special authorization to disclose was developed to comply with the provisions regarding disclosure of medical, educational, and other information under P.L. 104-191 (HIPAA); 45 CFR parts 160 and 164, 42 U.S. Code section 290dd-2, 42 CFR part 2, 38 U.S. Code section 7332, 38 CFR 1.475; 20 U.S. Code section 1232g, (FERPA); 34 CFR parts 99 and 300, and State law.			



State of Florida
Estado De La Florida

Department of Children and Families
Departamento de Niños y Familias

FINANCIAL INFORMATION RELEASE
Autorización Para Informe Económico

Date (Fecha): _____

Case Number or ACCESS Number
(Número del Caso o Número de ACCESS)

To Whom It May Concern:
(A Quien Pueda Interesar):

I hereby grant permission and authorize any bank, building association, employer, insurance company, real estate company, government agency or any financial institution of any kind or character to disclose to any agent of the Department of Children and Families full information as to my bank accounts, earnings, insurance policies, property or benefits, for the time period listed below.

(Por la presente autorizo a cualquier banco, compañía de construcción, compañía de seguros, compañía de bienes raíces, agencia de gobierno o institución financiera que a sí lo solicite, a suministrar información sobre mis cuentas bancarias, ingresos, pólizas de seguro, propiedades o beneficios, por el periodo de tiempo abajo indicado, a cualquier empleado del Departamento de Niños y Familias.)

This release is valid from _____ to _____.

(Esta autorización es válida desde _____ hasta _____.)

Signature(s):
(Firma(s))

 X

Name(s) on Account:

(Nombre(s) en la Cuenta)

ESS Specialist Signature

Date